

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1761

By: Moore

AS INTRODUCED

An Act relating to schools; amending 70 O.S. 2021, Section 1210.520, as amended by Section 10, Chapter 411, O.S.L. 2024 (70 O.S. Supp. 2024, Section 1210.520), which relates to screening for dyslexia; requiring certain students to rescreen every three years; limiting rescreen requirements in certain circumstances; requiring districts to report rescreening data; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 1210.520, as amended by Section 10, Chapter 411, O.S.L. 2024 (70 O.S. Supp. 2024, Section 1210.520), is amended to read as follows:

Section 1210.520. A. Beginning with the 2022-2023 school year and for each school year thereafter, any student enrolled in kindergarten, first, second, or third grade in a public school in this state who is assessed through the Strong Readers Act pursuant to Section 1210.508C of this title and who is not meeting grade-level targets in reading after the beginning-of-the-year assessment shall be screened for dyslexia. Screening also may be requested for

1 a student by his or her parent or legal guardian, teacher,
2 counselor, speech-language pathologist, or school psychologist.

3 B. Only students whose screenings resulted in a positive
4 identification for characteristics of dyslexia shall be rescreened
5 every three (3) years, regardless of grade level, until the student
6 turns eighteen (18) years of age or until a rescreening results in a
7 negative identification. The State Board of Education shall develop
8 policies for dyslexia rescreening required under this subsection.

9 C. No later than July 1, 2021, the State Board of Education
10 shall develop policies for dyslexia screening required under this
11 subsection and shall include, but not be limited to:

12 1. The definition and characteristics of dyslexia and related
13 language disorders;

14 2. The process for referring students in kindergarten and
15 grades one through three for screening;

16 3. A process for providing notification to parents or legal
17 guardians of the use of a qualified dyslexia-screening tool and
18 notification of the results of the screening;

19 4. A process for providing the parents or legal guardians of
20 students screened for dyslexia with information and resource
21 material regarding dyslexia;

22 5. A process for monitoring the student's progress after the
23 positive identification of characteristics of dyslexia or other
24 disorders; and

1 6. Requirements and qualifications for screeners that
2 demonstrate an understanding of and training to administer the
3 screening instrument.

4 ~~C.~~ D. The Board shall adopt a list of approved qualified
5 dyslexia screening tools that address the following components, as
6 developmentally appropriate:

- 7 1. Phonological awareness;
- 8 2. Advanced phonemic awareness;
- 9 3. Sound symbol recognition;
- 10 4. Alphabet knowledge;
- 11 5. Decoding skills;
- 12 6. Encoding skills;
- 13 7. Rapid naming; and
- 14 8. Developmental language.

15 ~~D.~~ E. Screening shall be conducted in accordance with the
16 policies developed by the State Board of Education pursuant to
17 subsection ~~B~~ C of this section and the Oklahoma Dyslexia Handbook
18 including policies and information developed relating to universal
19 screening of kindergarten students for characteristics of dyslexia.

20 ~~E.~~ F. Beginning June 30, 2023, and for each year thereafter,
21 school districts shall provide the following data to the State
22 Department of Education:

- 23 1. The number of students by grade level in kindergarten
24 through grade three who were screened for dyslexia in a school year;

2. The number of students by grade level in kindergarten through grade three who were newly identified as having characteristics of dyslexia in a school year;

3. The number of students by grade level who were rescreened for dyslexia pursuant to subsection B of this section in a school year;

4. The number of rescreened students by grade level whose results remained unchanged from the previous screening in a school year;

5. The number of rescreened students by grade level whose results changed from the previous positive screening to a negative identification of characteristics of dyslexia in a school year;

6. The process or tools used to evaluate student progress;

~~4.~~ 7. The number of trained school system personnel or licensed professionals used to administer the qualified dyslexia screening tool;

~~5.~~ 8. The number of students in kindergarten through grade three who were participating in interventions within the school setting and the number of students participating in interventions outside the school setting; and

~~6.~~ 9. The programs used by districts for intervention within the school setting.

~~F.~~ G. By December 31, 2023, and for each year thereafter, the State Department of Education shall provide a report electronically

1 containing all of the information provided in subsection ~~E~~ F of this
2 section to the Governor and Legislature and make the report
3 available on the Department's website.

4 ~~G.~~ H. As funds are available, beginning with the 2021-2022
5 school year, the Department shall provide training on the best
6 practices for screening for dyslexia.

7 ~~H.~~ I. The State Board of Education may promulgate rules
8 necessary to implement the provisions of this section.

9 SECTION 2. This act shall become effective July 1, 2025.

10 SECTION 3. It being immediately necessary for the preservation
11 of the public peace, health or safety, an emergency is hereby
12 declared to exist, by reason whereof this act shall take effect and
13 be in full force from and after its passage and approval.

14
15 60-1-10409 SW 01/12/25
16
17
18
19
20
21
22
23
24